

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 4237

By: Kannady and Moore of the
House

and

Gollihare of the Senate

COMMITTEE SUBSTITUTE

[criminal procedure - cost hearings - offer certain
hearing - exceptions - ability to pay determination -
conditions for waiver - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 983, as last
amended by Section 2, Chapter 211, O.S.L. 2024 (22 O.S. Supp. 2025,
Section 983), is amended to read as follows:

Section 983. A. As used in this section, unless the context
otherwise requires:

1. "Cost arrest warrant" means a warrant authorizing arrest
that is issued by a court under the following circumstances:

- a. failure to comply with the terms of a court financial
obligations payment plan,

1 b. failure to appear at a cost hearing or willfulness
2 hearing, or

3 c. failure to appear at the office of the court clerk of
4 the county in which the court financial obligation is
5 owed within ten (10) days of being cited by a law
6 enforcement officer to appear;

7 2. "Cost cite and release warrant" means a warrant issued by a
8 court authorizing citation and release under the following
9 circumstances:

10 a. failure to comply with terms of a court financial
11 obligations payment plan, or

12 b. failure to appear at a cost hearing or willfulness
13 hearing;

14 3. "Cost hearing" means a hearing in which the court determines
15 the ability of a defendant to pay court financial obligations. Once
16 a cost hearing date has been set, all court financial obligations
17 shall be suspended until the cost hearing has been held;

18 4. "Court financial obligation" means all financial obligations
19 including fines, costs, fees, and assessments, imposed by the court
20 or required by law to be paid, excluding restitution or payments to
21 be made other than to the court clerk;

22 5. "Payment-in-full" means a court financial payment term that
23 requires the defendant to pay the full amount of court financial
24 obligations owed within ninety (90) days of a plea or sentence in

1 the district court or within thirty (30) days of a plea or sentence
2 in the municipal court;

3 6. "Payment-in-installments" means payment terms for court
4 financial obligations that require the defendant to make monthly
5 payments in any amount until the amount owed is fully paid; and

6 7. "Willfulness hearing" means a hearing in which the court
7 determines whether a defendant who has previously been found to have
8 the ability to pay court financial obligations has willfully failed
9 to pay the debt.

10 B. 1. Except in cases provided for in Section 983b of this
11 title, when the judgment and sentence of a court, either in whole or
12 in part, imposes court financial obligations upon a defendant, the
13 court at the time of sentencing ~~may immediately, or at any point~~
14 ~~thereafter until the debt is either paid or waived,~~ shall offer to
15 conduct, contemporaneous with sentencing or at a later date, a
16 hearing to determine the ability of a defendant to pay the court
17 financial obligations. The court may make such determinations at a
18 cost hearing or upon written motion or affidavit by the defendant.
19 The ability of a defendant to pay court financial obligations may
20 not impact the sentence imposed.

21 2. Defendants with court financial obligations who are found by
22 the court to be unable to pay, in whole or in part, or who show
23 sufficient evidence of a presumption pursuant to paragraph 5 of this
24 subsection, shall be relieved of the debt by the court through a

1 hardship waiver of the court financial obligations, either in whole
2 or in part.

3 3. In determining the ability of a defendant to pay, the court
4 shall consider the following factors:

- 5 a. individual and household income,
- 6 b. household living expenses,
- 7 c. number of dependents,
- 8 d. assets,
- 9 e. child support obligations,
- 10 f. physical or mental health conditions that diminish the
11 ability to generate income or manage resources,
- 12 g. additional case-related expenses to be paid by the
13 defendant, and
- 14 h. any other factors relevant to the ability of the
15 defendant to pay.

16 4. In determining the ability of a defendant to pay, the
17 following shall not be considered as income or assets:

- 18 a. child support income,
- 19 b. any monies received from a federal, state, or tribal
20 government need-based or disability assistance
21 program, or
- 22 c. assets exempt from bankruptcy.

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1 5. Defendants in the following circumstances are presumed
2 unable to pay and eligible for relief under paragraph 2 of this
3 subsection:

- 4 a. designated as totally disabled by any federal, state,
5 or tribal disability services program including but
6 not limited to military disability, Social Security
7 Disability Insurance, Supplemental Security Income, or
8 tribal disability benefits,
- 9 b. receives support from the Temporary Assistance for
10 Needy Families program, Supplemental Nutrition
11 Assistance Program, the Special Supplemental Nutrition
12 Program for Women, Infants, and Children nutrition
13 education and supplemental food program, or any other
14 federal need-based financial support,
- 15 c. receives subsidized housing support through the
16 Housing Choice Voucher program, the United States
17 Department of Housing and Urban Development, or other
18 state, local, or federal government housing subsidy
19 program, or
- 20 d. total income is below one hundred fifty percent (150%)
21 of the federal poverty level.

22 C. 1. At the time of a plea or sentencing, the court shall
23 inform the defendant of the total court financial obligations owed,
24 the consequences of failing to pay the court financial obligations,

1 and that the defendant may request a cost hearing if at any time he
2 or she is unable to pay the court financial obligations, at which
3 point the court may waive all or part of the debt owed. If the
4 total amount of court financial obligations owed is not available at
5 the time of the plea or sentencing, the court shall inform the
6 defendant that court financial obligations have been incurred and
7 the time and location where the defendant may learn of the total
8 amount owed.

9 2. The court shall order the defendant to appear immediately
10 after sentencing at the office of the court clerk to provide current
11 contact information and to either select payment terms or request a
12 cost hearing. Failure to immediately report to the court clerk
13 shall result in the full amount of court financial obligations to be
14 due thirty (30) days from the date of the plea or sentencing in
15 district courts or thirty (30) days from the date of the plea or
16 sentencing in municipal courts.

17 3. Payment of court financial obligations may be made under the
18 following terms:

- 19 a. payment in full, or
- 20 b. payment in installments.

21 Upon any change in circumstances affecting the ability of a
22 defendant to pay, a defendant may request a cost hearing before the
23 court by contacting the court clerk.

1 4. The district court for each county and all municipal courts
2 shall provide a cost hearing for any defendant upon request, either
3 by establishing a dedicated docket or on an as-requested basis. A
4 defendant who requests a cost hearing will receive a summons by
5 personal service or by United States mail to appear in court as
6 required by subsection G of this section. If a defendant fails to
7 appear for a requested cost hearing, the court may issue either a
8 cost cite and release warrant or a cost arrest warrant. No fees
9 shall be assessed or collected from the defendant as a consequence
10 of either requesting a cost hearing or the issuing of a cost cite
11 and release warrant.

12 D. In determining the ability of the defendant to pay court
13 financial obligations, the court may rely on testimony, relevant
14 documents, and any information provided by the defendant using a
15 cost hearing affidavit promulgated by the Court of Criminal Appeals.
16 In addition, the court may make inquiry of the defendant and
17 consider any other evidence or testimony concerning the ability of
18 the defendant to pay.

19 E. 1. If at the initial cost hearing or any subsequent cost
20 hearing, the court determines that the defendant is able to pay some
21 or all of the court financial obligations, the court may order any
22 of the following conditions for payment:

- 23 a. payment in full,
- 24 b. payment in installments,

- c. financial incentive under a set of conditions determined by the court, or
- d. community service in lieu of payment; provided, the defendant shall receive credit for no less than two times the amount of the minimum wage specified pursuant to state law for each hour of community service.

2. Any defendant who fails to comply with the terms of the payment plan ordered by the court shall be considered delinquent and the court may issue either a cost cite and release warrant or a cost arrest warrant.

F. If the court determines that a waiver of any of the court financial obligations is warranted, the court shall apply the same percentage reduction equally to all fines, court costs, fees, and assessments, excluding restitution.

G. 1. A defendant is considered delinquent in the payment of court financial obligations under the following circumstances:

- a. when the total amount due has not been paid by the due date, or
- b. when no installment payments have been received in the most recent ninety-day period.

2. The court clerk shall periodically review cases for delinquency at least once every six (6) months and, upon identifying a delinquent defendant, notify the court which shall, within ten

1 (10) days thereafter, set a cost hearing for the court to determine
2 if the defendant is able to pay. The court shall make an ability to
3 pay determination at such hearing. Any waiver of such hearing shall
4 occur in open court after the defendant is advised of the cost
5 hearing process. The cost hearing shall be set within forty-five
6 (45) days of the issuance of the summons. The hearing shall be set
7 on a date that shall allow the court clerk to issue a summons
8 fourteen (14) days prior to the cost hearing. Defendants shall
9 incur no additional fees associated with the issuance of the
10 summons.

11 3. At least fourteen (14) days prior to the cost hearing, the
12 court clerk shall issue one summons to the defendant to be served by
13 United States mail to the mailing address of the defendant on file
14 in the case, substantially as follows:

15 SUMMONS

16 You are ORDERED to appear for a COST HEARING at a specified
17 time, place, and date to determine if you are financially able to
18 pay the fines, costs, fees, or assessments or an installment due in
19 Case No._____.

20 YOU MUST BE PRESENT AT THE HEARING.

21 At any time before the date of the cost hearing, you may contact
22 the court clerk and pay the amount due or request in writing or in
23 person prior to the court date, that the hearing be rescheduled for
24 no later than thirty (30) days after the scheduled time.

1 THIS IS NOT AN ARREST WARRANT. However, if you fail to appear
2 for the cost hearing or pay the amount due, the court may issue a
3 WARRANT and may refer the case to a court cost compliance liaison
4 which will cause an additional administrative fee of up to thirty-
5 five percent (35%) to be added to the amount owed and may include
6 additional costs imposed by the court.

7 4. Referrals to the court cost compliance program as provided
8 in subsection L of this section shall be made as follows:

- 9 a. courts shall refer a case to the court cost compliance
10 program upon the issuance of a cost arrest warrant,
- 11 b. courts may refer a case to the court cost compliance
12 program upon the issuance of a cost cite and release
13 warrant, or
- 14 c. courts may refer a case to the court cost compliance
15 program without the issuance of a warrant; provided,
16 the defendant is delinquent and has had sufficient
17 notice and opportunity to have a cost hearing.

18 5. A municipal court, in lieu of mailing the summons provided
19 for in this subsection, may give the summons to the defendant in
20 person at the time of sentencing or subsequent appearance of a
21 specific date, time, and place, not fewer than thirty (30) days nor
22 more than one hundred twenty (120) days from the date of sentencing
23 to appear for a cost hearing if the court financial obligations
24 remain unpaid.

1 H. 1. If a defendant is found by a law enforcement officer to
2 have an outstanding cost cite and release warrant, the law
3 enforcement officer shall issue a Warning/Notice to appear within
4 ten (10) days of release from detention on the warrant to the court
5 clerk of the court in which the court financial obligations are
6 owed. If the officer has the necessary equipment, the officer shall
7 immediately transmit the Warning/Notice electronically to the court
8 clerk of the court in which the court financial obligations are
9 owed. The law enforcement officer shall not take the defendant into
10 custody on the cite and release warrant. If the law enforcement
11 officer is unable to transmit the Warning/Notice electronically to
12 the court clerk, the officer shall inform the appropriate department
13 staff member within the agency of the law enforcement officer of the
14 Warning/Notice within five (5) days. The department staff member
15 shall then promptly notify the law enforcement agency in the
16 jurisdiction that issued the warrant electronically who shall
17 promptly notify the court clerk. The electronic communication shall
18 be treated as a duplicate original for all purposes in any
19 subsequent hearings before the appropriate court.

20 2. If the defendant reports to the office of the court clerk
21 within the ten (10) days, the court clerk shall:

- 22 a. inform the court of the Warning/Notice to the
23 defendant and contact,
24

1 b. schedule a cost hearing pursuant to applicable local
2 court rule, and

3 c. submit the warrant to the court for recall pending the
4 cost hearing.

5 3. If the defendant fails to report to the office of the court
6 clerk within the ten (10) days, the court may issue a cost arrest
7 warrant for the arrest of the defendant.

8 4. Following an arrest on a cost arrest warrant, the defendant
9 must be released after seventy-two (72) hours in custody. The
10 defendant may be released prior to seventy-two (72) hours if:

11 a. the custodian is presented with proof of payment in
12 the amount of One Hundred Dollars (\$100.00) to each
13 jurisdiction where the court financial obligations are
14 owed and the new cost hearing date is provided,

15 b. the court releases the defendant on the defendant's
16 own recognizance and a new cost hearing date is
17 provided, or

18 c. the court conducts a cost or willfulness hearing, as
19 appropriate, pursuant to the provisions of this
20 section and determines the defendant should be
21 released.

22 5. The provisions for issuing a separate summons described in
23 subsection G of this section shall not apply to a municipal court if
24 the municipal court has previously provided actual personal notice

1 to the defendant of an opportunity for a cost hearing. If such
2 notice was given and the defendant fails to appear, the municipal
3 court may issue either a cost cite and release warrant or a cost
4 arrest warrant.

5 6. All warrants for failure to appear at a cost hearing or for
6 failure to pay court financial obligations which have been issued
7 prior to the effective date of this act and which remain unserved,
8 shall be treated as cost cite and release warrants. All warrant
9 fees assessed for warrants for failure to appear at a cost hearing
10 or for failure to pay court financial obligations issued prior to
11 the effective date of this act shall remain in effect unless waived
12 by the court.

13 I. Supporting documents in a motion or affidavit for relief
14 from court financial obligation debt or any documents taken into
15 evidence during a cost hearing or willfulness hearing shall not be
16 viewable by the public on a court-controlled website.

17 J. 1. After a cost hearing where a defendant is found able to
18 pay a court financial obligation, either in whole or in part, and
19 then becomes delinquent in that payment, a court may conduct a
20 willfulness hearing at any time beginning immediately after a cost
21 hearing has been held and a decision rendered on the court financial
22 obligations. Findings of a defendant's prior ability to pay may be
23 considered as evidence of ability to pay or willfulness at the
24 hearing. The requirements of this paragraph shall not be construed

1 to prohibit the court from holding subsequent cost hearings on the
2 same court financial obligations.

3 2. At a willfulness hearing, the court shall evaluate the
4 following:

5 a. whether a cost hearing has been held previously where
6 evidence relating to ability to pay was presented and
7 the court found the defendant was able to pay the
8 court financial obligations, either in whole or in
9 part,

10 b. whether there is any new evidence of ability to pay
11 not previously considered or a change in circumstances
12 since the cost hearing,

13 c. whether the defendant was afforded sufficient time and
14 opportunity to fulfill the obligation to pay the court
15 financial obligations,

16 d. whether the defendant made any efforts to satisfy the
17 court financial obligations, and

18 e. whether there are any other relevant facts or
19 circumstances.

20 3. After a finding of willful failure to pay court financial
21 obligations, the court may impose a jail sentence pursuant to
22 Section 101 of Title 28 of the Oklahoma Statutes. A jail sentence
23 may be imposed only under the following circumstances:
24

1 a. the hearing is conducted on the record pursuant to the
2 rules promulgated by the Court of Criminal Appeals,
3 and

4 b. the defendant is represented by counsel or expressly
5 waives his or her right to counsel.

6 4. If a jail sentence is imposed, the court may grant credit
7 for any time already served. At any time after incarceration, the
8 jail sentence may be satisfied upon payment in full of the
9 outstanding balance with credit for any time already served.

10 K. The district court or municipal court, within one hundred
11 twenty (120) days from the date upon which the person fails to
12 comply with the financial obligation as ordered by the court or
13 fails to appear for the offered cost or willfulness hearing, may, if
14 the defendant has previously been notified of the possibility of a
15 suspension, send notice of nonpayment of any court-ordered financial
16 obligation for a moving traffic violation to Service Oklahoma with a
17 recommendation of suspension of driving privileges of the defendant
18 until the total amount of any court financial obligation has been
19 paid or waived by the court. Upon receipt of payment of the total
20 amount of the court financial obligations for the moving traffic
21 violation, the court shall send notice thereof to Service Oklahoma,
22 if a nonpayment notice was sent as provided for in this subsection.
23 Notices sent to Service Oklahoma shall be on forms or by a method
24 approved by Service Oklahoma.

1 L. Every county and district court of this state shall fully
2 utilize and participate in the court cost compliance program. Cases
3 shall be referred to the court cost compliance program no more than
4 sixty (60) days after the court has ordered the referral pursuant to
5 paragraph 4 of subsection G of this section, unless the defendant
6 pays the amount owed on the court financial obligation or an
7 installment due. When the court refers a case, the updated contact
8 information on file shall be forwarded to a court cost compliance
9 liaison for collection purposes.

10 M. The Court of Criminal Appeals shall implement procedures and
11 rules for implementation of the requirements of this section. Such
12 procedures, rules, and any supplemental forms may be made available
13 by the Administrative Office of the Courts.

14 SECTION 2. This act shall become effective November 1, 2026.
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